



CHAPTER ci.

An Act to confer powers on the London County Council and metropolitan borough councils and for other purposes. A.D. 1913.
[15th August 1913.]

WHEREAS it is expedient that the London County Council (in this Act called "the Council") should be empowered to appropriate and use certain lands in the administrative county of London for purposes other than those for which they are now empowered to use such lands :

And whereas it is expedient that the appropriation and use by the Council of certain lands in the metropolitan borough of Lambeth for purposes of or in connexion with the Metropolitan Fire Brigade Act 1865 and the tramway undertaking of the Council respectively should be confirmed and that the provisions contained in this Act with respect thereto should be enacted :

And whereas it is expedient that the Council and other authorities should be empowered to enter into and carry into effect agreements with the object of obtaining an ambulance service to deal with cases of accident or illness (other than infectious disease) :

And whereas it is expedient that the Council should be empowered to contribute such a sum not exceeding thirty thousand pounds as they may think fit for the acquisition of certain lands and premises situate partly in the metropolitan boroughs of Camberwell and Lewisham and partly in the urban districts of Beckenham and Penge in the administrative county of Kent known as the Crystal Palace and the grounds appurtenant thereto and lands and premises held in connexion therewith :

And whereas it is expedient that the time for the completion of certain authorised works should be extended as in this Act provided :

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A.D. 1913:

And whereas it is expedient that the metropolitan borough councils should be empowered to attach brackets pipes and other apparatus to buildings for use for purposes of public lighting:

And whereas it is expedient that the provisions contained in this Act with respect to the acquisition or use of certain lands in the metropolitan borough of Southwark by the council of that borough (herein-after referred to as "the Southwark Council") should be enacted:

And whereas it is expedient that the Southwark Council should be empowered and required to contribute to the costs charges and expenses incidental to the obtaining of this Act:

And whereas it is expedient that the other provisions contained in this Act should be made:

And whereas in relation to the promotion of the Bill for this Act so far as regards the application for powers to be conferred upon the Southwark Council the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas the Council have deposited with the clerk of the peace for the county of London a plan describing the lands which may be compulsorily taken or used under the powers of this Act and also a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands and such plan and book of reference are respectively referred to in this Act as the deposited plan and book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

INTRODUCTORY.

Short title.

1. This Act may be cited as the London County Council (General Powers) Act 1913.

2. This Act is divided into Parts as follows:—

Part I.—Introductory.

Part II.—Powers to Southwark Council.

Part III.—Miscellaneous and Financial Provisions.

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Division of
Act into
Parts.

3. In this Act unless the subject or context otherwise requires—

Interpreta-
tion.

“The Council” means the London County Council;

“The Southwark Council” means the council of the metropolitan borough of Southwark.

PART II.

POWERS TO SOUTHWARK COUNCIL.

4.—(1) Subject to the provisions of this Part of this Act the Southwark Council may for the purposes herein-after specified purchase or acquire the lands delineated on the deposited plan and described in the deposited book of reference.

Acquisition
and appro-
priation of
lands by
Southwark
Council.

(2) Notwithstanding anything contained in the Disused Burial Grounds Act 1884 the Open Spaces Act 1906 or any other Act the Southwark Council may appropriate hold and use for the purposes of a mortuary and the holding of inquests and post-mortem examinations and the erection of buildings required therefor or for any of such purposes—

(a) So much of the said lands as is shown by a green colour upon the plan marked “A” signed by Sir William Howell Davies the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one copy of which has been deposited in the Private Bill Office of the House of Commons and one copy in the Parliament Office of the House of Lords); and

(b) So much of the public open space in the parish of St. George-the-Martyr and the metropolitan borough of Southwark known as St. George - the - Martyr Southwark Churchyard as is shown by a red colour on the said plan marked “A.”

(3) As from the date of the appropriation of lands forming part of St. George-the-Martyr Southwark Churchyard as aforesaid such lands shall cease to form part of the said open space and to be subject to the Acts and byelaws relating thereto Provided

A.D. 1913. that the Southwark Council shall either before such appropriation or as soon as reasonably practicable thereafter appropriate for the purpose of a public open space the lands in the said parish and metropolitan borough used in part as the site of an existing mortuary and shown by a blue colour on the said plan marked "A" and such last-mentioned lands shall as from the date of the appropriation thereof for the purpose of a public open space be added to and form part of St. George-the-Martyr Southwark Churchyard and be subject to all such Acts and byelaws as relate to the maintenance of the same as a public open space.

Incorporation of Lands Clauses Acts.

5. The Lands Clauses Acts so far as the same are applicable for the purposes of and not inconsistent with or varied by this Part of this Act are hereby incorporated with and form part of this Part of this Act.

Limitation of time for purchase of lands by Southwark Council.

6. The powers of the Southwark Council for the compulsory purchase of lands under this Part of this Act shall cease after the expiration of three years from the passing of this Act.

Correction of errors in deposited plan &c.

7. If any omission misstatement or erroneous description shall have been made of any lands or of the owners lessees or occupiers of any lands shown upon the deposited plan or described in the deposited book of reference the Southwark Council may after ten days' notice under the hand of their town clerk to the owners lessees and occupiers of the lands affected by the proposed correction apply to a metropolitan police magistrate for the correction thereof and if it shall appear to such magistrate that such omission misstatement or erroneous description arose from mistake he shall certify the same accordingly and he shall in such certificate state the particulars of any such omission and in what respect any such matter shall have been misstated or erroneously described and such certificate shall be deposited with the clerk of the peace for the county of London and shall be kept by such clerk of the peace along with the other documents to which it relates and thereupon such plan or book of reference shall be deemed to be corrected according to such certificate and the Southwark Council may take the lands in accordance with such certificate.

Removal of human remains.

8.—(1) In the event of the Southwark Council erecting any building for the purposes referred to in the section of this Act of which the marginal note is "Acquisition and appropriation of lands by Southwark Council" upon any part of the lands shown by a

green or red colour upon the plan referred to in the said section they shall before erecting such building remove or cause to be removed the remains of any deceased person interred in such part of the said lands. A.D. 1913.

(2) Before proceeding to remove any such remains the Southwark Council shall publish a notice for three successive days in two newspapers circulating in the metropolitan borough of Southwark to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are so intended to be removed may give notice in writing to the Southwark Council of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as herein-after mentioned to any regulations made by the bishop of the diocese of Southwark to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Southwark Council that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Southwark who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave the sum of ten pounds) shall be defrayed by the Southwark Council such sum to be apportioned if necessary equally according to the number of remains in the grave.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Southwark Council in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the bishop the Southwark Council may without any faculty for that purpose remove the remains of the deceased person and cause them to be interred in such other consecrated

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A.D. 1913. — burial ground or cemetery in which burials may legally take place as the Southwark Council think suitable for the purpose subject to the consent of the bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Southwark Council be removed and re-erected at the place of re-interment of such remains or at such place within the said metropolitan borough as the bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Southwark Council.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the said metropolitan borough.

Capital
expenditure
and borrow-
ing by
Southwark
Council.

9.—(1) The Southwark Council may incur such expenditure on capital account and (subject to the provisions of this section) may borrow to such extent as may be necessary for the purposes of this Part of this Act.

(2) For the purpose of securing the repayment with interest of any moneys to be borrowed under the powers of this section the Southwark Council may mortgage and assign any of the moneys or rates authorised to be raised by them under the Metropolis Management Act 1855 as amended by any subsequent Act and any borrowing by the Southwark Council under the powers of this section shall be subject in all respects to the provisions of sections 183 to 189 of the said Metropolis Management Act 1855 as amended by any subsequent Act Provided that the Local Government Board shall be the authority to sanction any borrowing under the powers of this section in respect of the provision of accommodation for the holding of inquests and for post-mortem examinations.

(3) All moneys borrowed by the Southwark Council under this section shall be repaid within a period not exceeding sixty years from the date of borrowing.

PART III.

MISCELLANEOUS AND FINANCIAL PROVISIONS.

Appropriation of land for providing

10.—(1) The Council may appropriate and use for the purpose of providing additional accommodation for the quarter sessions for the county of London such portion as they may

think fit but not exceeding about one hundred and eight square yards in area of the land in the parish of St. Mary Newington and the metropolitan borough of Southwark forming the approach from Avonmouth Street in the said borough to the gas meter testing station belonging to the Council in that borough.

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additional
accommoda-
tion for
quarter
sessions.

(2) There shall be charged to the capital account of the Council relating to quarter sessions and deemed to be capital expenditure of the Council in respect of quarter sessions such a sum as the Council may determine in respect of the appropriation and use by this section authorised and such sum shall be applied by the Council in or towards capital expenditure upon or the repayment of money borrowed for the provision of accommodation for gas meter testing.

11.—(1) The Council shall be deemed on and from the twenty-eighth day of November one thousand nine hundred and eleven to have been empowered—

Appropriation of lands for fire brigade and tramway purposes.

(a) To appropriate hold and use for purposes of the Metropolitan Fire Brigade Act 1865 and any Act amending the same lands in the parish of St. Mary Lambeth and the metropolitan borough of Lambeth comprising about fourteen thousand nine hundred square feet in area the said lands being bounded on the south-east by lands and premises known as "The Elms" No. 383 Norwood Road and on the north-west and north-east by lands and premises used for or in connexion with the tramway undertaking of the Council; and

(b) To charge to the capital account of the Council relating to purposes of or in connexion with the Metropolitan Fire Brigade Act 1865 and any Act amending or extending the same the sum of two thousand one hundred pounds in respect of such appropriation and use as aforesaid and to apply that sum in or towards capital expenditure upon or the repayment of money borrowed for purposes of or in connexion with the tramway undertaking of the Council.

(2) The Council shall be deemed on and from the fifth day of March one thousand nine hundred and twelve to have been empowered—

(a) To appropriate hold and use for purposes of or in connexion with their tramway undertaking lands in the parish of St. Mary Lambeth and the metropolitan

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borough of Lambeth comprising two plots about three thousand two hundred and ninety and three thousand one hundred and sixty square feet in area respectively the said lands having been acquired by the Council in connexion with the widening of Wandsworth Road and forming part of certain lands abutting upon the said road and now used for purposes of or in connexion with the tramway undertaking of the Council; and

(b) To charge to the capital account of the Council relating to their tramway undertaking the sum of three thousand two hundred and twenty-five pounds in respect of such appropriation and use as last aforesaid and to apply that sum in or towards capital expenditure upon or the repayment of money borrowed for the purpose of widening Wandsworth Road.

(3) Nothing in this Act shall exempt the Council from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon the lands appropriated as mentioned in subsection (2) of this section.

Contribution
by Council
towards
acquisition
of Crystal
Palace.

12. The Council may if they think fit contribute any sum or sums not exceeding in the whole thirty thousand pounds towards the cost of the acquisition of the whole or any part of the lands and premises situate partly in the metropolitan boroughs of Camberwell and Lewisham and partly in the urban districts of Beckenham and Penge and known as the Crystal Palace with the grounds appurtenant thereto and any lands and premises held in connexion therewith.

Extension of
time for com-
pletion of
works.

13.—(1) The time limited by the London County Council (Improvements) Act 1900 as extended by the London County Council (General Powers) Act 1907 the London County Council (General Powers) Act 1909 and the London County Council (General Powers) Act 1911 for the construction of the Thames Embankment Extension and Improvements at Westminster described in and authorised by the said Act of 1900 is hereby further extended till the sixth day of August one thousand nine hundred and fifteen.

(2) The time limited by the County Office Site (London Act 1906 for the completion of the works authorised by that Act is hereby extended till the twentieth day of July one thousand nine hundred and eighteen.

14. The Council may pay any expenses incurred by them in receiving or entertaining representatives from or sending representatives to public authorities and other bodies or otherwise in connexion with the interchange of civilities between the Council and such authorities and bodies Provided that the aggregate amount of expenses paid by the Council under the powers of this section shall not exceed in any financial year one hundred pounds.

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Council may pay expenses incurred in interchange of civilities with other authorities &c.

15. The Council on the one hand and the managers of the metropolitan asylums district the Port of London Authority the metropolitan borough councils and boards of guardians of poor law unions within or adjoining the administrative county of London or any of such authorities on the other hand may enter into and carry into effect agreements for the working and use by the Council or any of such authorities for the purposes of the ambulance service authorised by the Metropolitan Ambulances Act 1909 of ambulances lands premises and appliances used by the Council or any of such authorities in connexion with ambulance services provided by them for purposes other than those of the said Act and for utilising for the purposes of the ambulance service authorised by the said Act the services of any persons employed by the Council or any of such authorities.

Agreements as to ambulance services.

16. Any metropolitan borough council may with the consent of the owner of any building situate within their borough attach to that building such brackets wires pipes lamps and apparatus as may be necessary or convenient for the lighting of any street in that borough:

Attachment of brackets &c. to buildings for public lighting.

Provided that—

- (1) Where in the opinion of the metropolitan borough council any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid;
- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have

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effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the metropolitan borough council notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1);

- (3) The owner may require the metropolitan borough council to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purposes of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner except in the case of any building in which any railway company possess any legal or equitable estate or interest and which is situate over or partly over any station belonging to that company in which case such railway company shall be deemed to be the owner thereof for the purposes of this section and the section of this Act of which the marginal note is "For protection of railway companies."

For protec-
tion of
railway
companies.

17.—(1) Nothing in the section of this Act of which the marginal note is "Attachment of brackets &c. to buildings for public lighting" shall authorise any metropolitan borough council to affix brackets wires pipes lamps or apparatus to the structure of any railway bridge or viaduct belonging to any railway company without the previous consent in writing of such company.

(2) In the case of any building of which a railway company are the owner for the purposes of the said section any question which pursuant to the said section is to be determined by a petty sessional court shall in lieu thereof be referred to and determined by an engineer to be agreed on by the parties to such question or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such reference. Any engineer to whom any such question is referred shall (in addition to any other powers vested in him under the Arbitration Act 1889) have all the

like powers as are by the said section conferred upon a petty sessional court and for the purposes of the said section the award of such engineer shall be deemed to be equivalent to an order of a petty sessional court. A.D. 1913.

18. The Council may expend on capital account for the purposes of the section of this Act of which the marginal note is "Contribution by Council towards acquisition of Crystal Palace" such money as they may from time to time think fit not exceeding thirty thousand pounds and may borrow or otherwise provide the money required for those purposes in accordance with the provisions of the London County Council (Finance Consolidation) Act 1912 Provided that nothing in this section shall authorise the borrowing and expenditure of any money on capital account after the thirtieth day of September one thousand nine hundred and fourteen. Money to be raised on capital account.

19. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

20. Nothing contained in this Act shall extend to authorise the Council to take use enter upon or interfere with any land soil or water or take away diminish alter prejudice or affect any property rights profits privileges powers or authorities belonging to or enjoyed by His Majesty in right of the duchy of Cornwall or to or by the Duke of Cornwall for the time being without (in the case of land soil water property rights profits privileges or authorities belonging to or enjoyed by His Majesty in right of the said duchy) the consent in writing of some two or more of such of the regular officers of the said duchy or of such other persons as may be duly authorised under the provisions of the Duchy of Cornwall Management Act 1863 section 39 to exercise all or any of the rights powers privileges and authorities by the said Act made exerciseable or otherwise for the time being exerciseable in relation to the said duchy or (in the case of land soil water property rights profits privileges or authorities belonging to or enjoyed by the Duke of Cornwall for the time being) the consent of such Duke testified in writing under the seal of the duchy of Cornwall first had and obtained for that purpose. Saving rights of duchy of Cornwall.

21.—(1) All costs and expenses of the Council in the execution of this Act (except so far as they may be otherwise provided for by this or any other Act) shall be defrayed as As to payments under this Act.

A.D. 1913. — payments for general or special county purposes within the meaning of the Local Government Act 1888 as the Council may decide and the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act shall be paid by the Council in like manner Provided that so much of the said last-mentioned costs charges and expenses as may be or have been incurred in respect of or in connexion with (a) the provisions contained in Part II. of this Act and (b) the proposal originally contained in the Bill for this Act to amend section 54 of the London County Council (General Powers) Act 1905 relating to Latchmere Allotments shall be paid by the Southwark Council and the council of the metropolitan borough of Battersea respectively out of the general rate authorised to be levied by those councils.

(2) Any moneys expended by the council of any metropolitan borough in the execution of this Act (except so far as they may be otherwise provided for) shall be paid out of the general rate authorised to be levied by such council.

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